SOFTWARE SERVICES AGREEMENT

This Software Services Agreement ("Agreement") is made on 15 March 2025 between TECHVAULT SOLUTIONS PVT LTD, having its registered office at Unit 302, Prestige Tower, Bengaluru 560001 ("Client"), and the service provider identified in the Order Form attached hereto ("Service Provider").

1. SERVICES

1.1 Service Provider shall provide the software development, maintenance, and support services described in the Statement of Work ("SOW") attached as Exhibit A.

1.2 Service Provider shall perform the Services to the satisfaction of Client. Client's determination of whether Services meet the required standard shall be final and binding.

1.3 Service Provider shall make available to Client such personnel as Client may reasonably require. Client may require Service Provider to replace any personnel assigned to the project within 48 hours.

2. FEES AND PAYMENT

2.1 Client shall pay Service Provider the fees set out in Exhibit A within sixty (60) days of invoice.

2.2 Client may withhold payment of any invoice it disputes in good faith. Client shall notify Service Provider of any disputed invoice within 60 days of receipt.

2.3 Service Provider shall not be entitled to suspend Services due to non-payment unless the undisputed overdue amount exceeds INR 10,00,000 (Rupees Ten Lakh) and remains unpaid for more than 120 days.

3. INTELLECTUAL PROPERTY RIGHTS

3.1 All works, inventions, discoveries, software code, documentation, designs, data, algorithms, know-how, and all other results arising from the performance of the Services ("Deliverables"), whether or not protectable as intellectual property, shall be the exclusive property of Client from the moment of creation.

3.2 Service Provider hereby assigns to Client, with full title guarantee, all intellectual property rights in the Deliverables, including all patents, copyrights, trade secrets, and other proprietary rights, to the fullest extent permitted by applicable law, on a global basis in perpetuity.

3.3 Service Provider shall ensure that all of its employees, contractors, and sub-contractors execute assignments confirming the assignment in Clause 3.2 prior to commencing any work.

3.4 This assignment extends to all pre-existing materials, methodologies, frameworks, and tools developed by Service Provider that are incorporated into or necessary to use the Deliverables.

3.5 Service Provider waives all moral rights in the Deliverables to the maximum extent permitted by applicable law.

4. CONFIDENTIALITY

4.1 Service Provider acknowledges that in the course of providing the Services it will have access to Confidential Information of Client.

4.2 Service Provider shall: (a) keep all Confidential Information strictly confidential; (b) not disclose it to any third party without Client's prior written consent; (c) use it only for the purpose of performing the Services; and (d) apply at least the same degree of protection as it applies to its own confidential information.

4.3 The obligations in this Clause 4 shall survive termination of this Agreement for a period of fifteen (15) years.

5. DATA PROTECTION

5.1 Service Provider shall process Client's personal data only in accordance with Client's written instructions.

5.2 Service Provider shall implement appropriate technical and organisational measures to protect personal data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure, or access.

5.3 Service Provider shall notify Client within 12 hours of becoming aware of a personal data breach affecting Client's data.

6. WARRANTIES

6.1 Service Provider warrants that: (a) it has the right to enter into this Agreement; (b) the Services will be performed with reasonable skill and care; (c) the Deliverables will conform to the specifications in the SOW; and (d) the Deliverables will not infringe any third-party intellectual property rights.

6.2 Service Provider shall, at its own cost, promptly remedy any breach of the warranty in Clause 6.1 within 5 business days of notification by Client.

7. INDEMNIFICATION

7.1 Service Provider shall indemnify, defend, and hold harmless Client and its affiliates against all claims, liabilities, damages, costs, and expenses arising from: (a) any breach of this Agreement by Service Provider; (b) any infringement of third-party intellectual property rights by the Deliverables; (c) any gross negligence or wilful misconduct of Service Provider; or (d) any claims by Service Provider's employees or contractors arising from the performance of the Services.

8. LIMITATION OF LIABILITY

8.1 To the maximum extent permitted by applicable law, Client's total liability to Service Provider under this Agreement shall be limited to the fees actually paid to Service Provider in the three (3) months immediately preceding the event giving rise to the claim.

8.2 In no event shall Client be liable to Service Provider for any loss of profits, loss of revenue, loss of business, loss of data, or any indirect or consequential loss, even if Client was advised of the possibility of such loss.

8.3 The foregoing limitation of liability shall not apply to Service Provider's liability to Client.

9. NON-SOLICITATION AND NON-COMPETE

9.1 For a period of two (2) years after termination of this Agreement, Service Provider shall not, directly or indirectly, solicit or employ any employee or contractor of Client who was involved in this project.

9.2 For a period of three (3) years after termination, Service Provider shall not provide services similar to the Services to any competitor of Client in the same product category, as determined by Client.

9.3 For a period of two (2) years after termination, Service Provider shall not engage with any of Client's existing customers or prospects whose details were disclosed during the course of this Agreement.

10. TERMINATION

10.1 Client may terminate this Agreement at any time for convenience by giving Service Provider seven (7) days' written notice.

10.2 Client may terminate immediately without notice if Service Provider commits a material breach or becomes insolvent.

10.3 Upon termination, Service Provider shall deliver all work-in-progress and Deliverables to Client within 24 hours.

10.4 Service Provider shall not be entitled to any compensation for termination for convenience, including for any work-in-progress.

11. AUDIT RIGHTS

11.1 Client shall have the right at any time to audit Service Provider's books, records, systems, and premises relating to this Agreement, with or without prior notice.

11.2 Service Provider shall cooperate fully with any such audit and provide Client and its appointed auditors with access to all relevant materials and personnel.

12. GOVERNING LAW

12.1 This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, United States.

12.2 Each party submits to the exclusive jurisdiction of the courts of the State of Delaware for the resolution of all disputes.

13. AUTOMATIC RENEWAL AND PRICING

13.1 This Agreement shall automatically renew for successive one-year terms unless either party gives 120 days' written notice of non-renewal.

13.2 Client may revise the fee schedule at any time by giving 30 days' notice. Service Provider's continued performance shall constitute acceptance of the revised fees.